

The complaint

Mrs F complains that Aviva Insurance Limited (“Aviva”) has unfairly declined to repair or take responsibility for damage caused to her vehicle following a claim on her car insurance policy.

Any reference to Mrs F or Aviva includes respective agents or representatives.

What happened

The background of this complaint is well known to all parties, so I’ve summarised events.

- Mrs F holds an Aviva car insurance policy.
- She made a claim following a road traffic incident. Aviva accepted the claim and recovered her vehicle to complete repairs.
- When Mrs F received her vehicle back, she said Aviva had caused damage to the roof (close to a fin antenna). She complained, saying the marks had no relation to the incident and described the regular maintenance and garage storage of the car.
- Aviva says Company A, the agent that recovered Mrs F’s vehicle, had said the damage was pre-existing and would not have been caused by its recovery. Aviva also commented stating the damage to the fin appeared consistent with someone trying to lever them off which wasn’t required or attempted during recovery or repair.
- Mrs F disagreed and brought the matter to this Service. She provided many photos of the vehicle and reiterated her position, and she also provided a quote for the roof/fin repair and repaint (around £325).
- Our Investigator didn’t uphold the complaint. She said Mrs F hadn’t provided any technical or expert opinion to support how the damage could’ve occurred. And that the photos Mrs F sought to rely on to show the car was undamaged were undated. The Investigator said the photos provided by Aviva gave a clearer indication of the vehicle’s condition and supported damage to the fin was existing.

Mrs F disagreed, stating the Investigator had overlooked her own photographs and unfairly sided with Aviva’s position. So, the complaint has been passed to me for an Ombudsman’s final decision.

What I’ve decided – and why

I’ve considered all the available evidence and arguments to decide what’s fair and reasonable in the circumstances of this complaint.

Having done so, I’m not upholding this complaint. I’ll explain why.

- Aviva accepted Mrs F’s insurance claim. And there’s no dispute between parties that this claim incident did not cause the roof damage in question.
- So, I have to decide what is the most likely cause of the roof damage in light of all of the available evidence. And whether this damage was caused by Aviva and/or its

agents during its recovery and repair of the vehicle as Mrs F has alleged.

- The damage in question is several small black marks/scratches around the fin on the roof of the vehicle.
- I've been given photos from Mrs F that show her vehicle without this roof damage. These photos are undated, and Mrs F hasn't said when they were taken. So, I accept these suggest Mrs F's car was without the roof damage at some point in time.
- Aviva has also provided photos. Some of these show the vehicle being recovered onto a truck. Having reviewed these, I think Company A's comments that the damage wouldn't have been caused by the recovery make sense. I say this as it would be unclear to me why the roof of the car would've been altered during this process or during any subsequent repair.
- Aviva has also provided Company A's photographs that it says shows the damage is pre-existing. One is taken at night and I can see a black mark on the fin. And a second is prior to Company A's delivery of the vehicle to Aviva's garage. This also appears to show a small black mark on the fin but is less clear than the first.
- I want to acknowledge that both of these images are grainy and far from close up images of the damage in question, but I have limited evidence that I have to base my decision on. And I'm satisfied these images most likely show the damage in question was in place at the time of the recovery, unlike Mrs F's photos that are undated.
- Aviva suggested the damage may have been caused by someone trying to lever off the fin. I accept this is a possibility, but ultimately whatever the cause, I'm satisfied this damage was existing at the time Aviva took responsibility for the vehicle. And as a result, I'm not directing it to take responsibility or pay any costs for this repair.
- Mrs F had also previously raised concerns about damage to one of her wheels. While this hasn't been the focus of her complaint with this Service, for similar reasons to above, I've not been given sufficient evidence to persuade me it would be fair to hold Aviva responsible for any necessary repair.

My final decision

For the above reasons, I'm not upholding this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs F to accept or reject my decision before 28 November 2022.

Jack Baldry
Ombudsman